

WRITTEN DEMAND THAT AN AGENCY CONFORM ITS RECORDS UNDER THE CRIMINAL HISTORY RECORD INFORMATION ACT

SEND THIS LETTER FIRST. It costs nothing, it is often enough, and it is the step this packet can complete end to end. The complaint in this packet is used only if this demand does not produce compliance.

From: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

Mailing address: 1188 Upper Notch Crossing Road, Apartment 14B, Scottsbluff, Nebraska 69361-2214

Telephone: (308) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

To (the agency whose records have not been conformed):

Agency:

Mailing address of the agency:

.....

.....

RE: DEMAND TO CONFORM RECORDS UNDER THE SECURITY, PRIVACY, AND DISSEMINATION OF CRIMINAL HISTORY INFORMATION ACT

1. I, Maria-Alejandra O'Shaughnessy-Whitfield, am the subject of the record identified below. Under Neb. Rev. Stat. Sec. 29-3523(3), criminal history record information of the kind described below may not be disseminated after the applicable period has run, and the act's duties on your agency are framed in mandatory terms.

2. The record (copied from my papers and my searches; nothing on these lines is written for me):

Date of arrest, citation or referral:

.....

How the matter ended - no charges filed, diversion completed, dismissed, or acquitted - and the date it ended:

.....

Case or citation number, if there was one:

.....

Date on which the period applicable to that kind of disposition ran out, or the event that ended it:

.....

How I verified that the record still appears publicly - a Nebraska State Patrol report, a court case search, or a courthouse public-access terminal printout, and the date I checked:

.....

.....

3. The applicable period under Neb. Rev. Stat. Sec. 29-3523(3) has elapsed, or its trigger has occurred, and the record described above nonetheless still appears in your agency's publicly available records.

4. I therefore ask that your agency conform its records to the act within thirty days of this letter, and confirm to me in writing at the mailing address above. Neb. Rev. Stat. Sec. 29-3528 provides that a person aggrieved by an agency's failure to comply with the act may bring an action, including an action for mandamus, to compel compliance; I would prefer that no action be necessary.

DATE SIGNATURE

(You sign and date this letter yourself, when you actually post it. This letter states no allegation of bad faith and makes no demand for money; it asks only that the records be conformed.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

Route: obligation:track-only:NE:ne-seal-enforcement

COMPLAINT FOR MANDAMUS AND TO COMPEL COMPLIANCE WITH NEB. REV. STAT. SEC.
29-3528

USE THIS COMPLAINT ONLY IF THE WRITTEN DEMAND DOES NOT PRODUCE COMPLIANCE, and read the attorney review recommendation in this packet before filing: Nebraska mandamus procedure and service on a public body were not surveyed, and this packet strongly recommends a lawyer's review of this action before it is filed.

IN THE DISTRICT COURT OF COUNTY, NEBRASKA
(THE DISTRICT WHERE THE RECORDS ARE LOCATED, OR THE DISTRICT COURT OF LANCASTER COUNTY - Neb. Rev. Stat. Sec. 29-3528 lets you choose; the venue election guidance in this packet explains the choice, which is yours)

Maria-Alejandra O'Shaughnessy-Whitfield,
PLAINTIFF,

v.

Respondent agency or political subdivision named below,
DEFENDANT.

Case No. (the court's office assigns it at filing)

COMPLAINT FOR MANDAMUS AND TO COMPEL COMPLIANCE WITH NEB. REV. STAT. Sec.
29-3528

1. The plaintiff, Maria-Alejandra O'Shaughnessy-Whitfield, date of birth 1968-12-31, brings this action under Neb. Rev. Stat. Sec. 29-3528, which provides that where any officer or employee of the state, its agencies or its political subdivisions, or any state agency or political subdivision, fails to comply with the Security, Privacy, and Dissemination of Criminal History Information Act, any person aggrieved may bring an action, including but not limited to an action for mandamus, to compel compliance. State v. Coble, 299 Neb. 434 (2018), identifies this action, rather than a motion in the criminal case, as the correct vehicle.

2. The defendant is the following agency or political subdivision, whose records have not been conformed:

Name of the agency or political subdivision, and its mailing address:

.....
.....

3. The plaintiff states the following from the record (nothing on these lines is written for you):

Date of arrest, citation or referral, on the complaint:

.....

How the matter ended - no charges filed, diversion completed, dismissed, or acquitted - and the date, on the complaint:

.....

Case or citation number, if there was one, on the complaint:

.....

Date on which the applicable Sec. 29-3523(3) period ran out, or the event that ended it, on the complaint:

.....

How the plaintiff verified the record still appears publicly, and the date checked, on the complaint:

.....

Date the written demand was delivered to the defendant, and what response, if any, was received:

.....

4. The applicable period under Neb. Rev. Stat. Sec. 29-3523(3) has elapsed or its trigger has occurred; the act's duties are framed in mandatory terms; the plaintiff demanded compliance in writing; and the defendant has not conformed its records.

5. The plaintiff therefore asks the court to issue a writ of mandamus, or such other relief as the statute provides, compelling the defendant to comply with the act and conform its records. This complaint alleges no bad faith, characterises no failure as wilful, and pleads no damages.

DATE SIGNATURE OF PLAINTIFF

(The plaintiff signs and dates this complaint personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield (self-represented)

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Scottsbluff, Nebraska
69361-2214

TELEPHONE: (308) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:NE:ne-seal-enforcement

VENUE ELECTION GUIDANCE

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Neb. Rev. Stat. Sec. 29-3528 gives you a choice of court, and THE CHOICE IS YOURS:

OPTION ONE. The district court of any district in which the records involved are located. Usually the district where the arrest happened or where the agency keeps its records. Filing there keeps the case close to the records and to you, if you live nearby.

OPTION TWO. The district court of Lancaster County. The statute makes Lancaster County always available, whatever district the records are in - useful where the records are spread across districts or where the holding agency is a state agency headquartered in Lincoln.

Neither option is legally stronger on the statute's face; the statute simply allows both. Practical matters - distance, where the agency is, where the records are - are the sensible deciders. If you cannot decide, that is a good question to bring to the lawyer the attorney review recommendation tells you to see before filing.

Route: obligation:track-only:NE:ne-seal-enforcement

ATTORNEY REVIEW RECOMMENDATION

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

READ THIS BEFORE FILING THE COMPLAINT. This packet STRONGLY RECOMMENDS that a Nebraska attorney review the action before it is filed. The demand letter needs no such review - send it. The complaint does, for these recorded reasons:

ONE. Nebraska mandamus procedure was not surveyed. Whether an application and affidavit and an alternative writ are required decides what accompanies the complaint, and no record this packet is built from answers it.

TWO. The rule for service on a Nebraska state agency or political subdivision was not surveyed. The respondent is a public body and you effect service; how, exactly, is a question for a lawyer or for the office of the district court where you file.

THREE. Whether relief is mandatory or discretionary once non-compliance is shown was not settled, although the sealing duty in Neb. Rev. Stat. Sec. 29-3523(7) is framed in mandatory terms.

FOUR. An agency that contests will appear through counsel, and an adversarial proceeding against a represented public body is not a self-help setting.

WHAT THIS ROUTE CANNOT FIX. A private background-check website or data broker is not reachable by this action - the section reaches the state, its agencies and its political subdivisions. A case that never qualified under Sec. 29-3523(3) cannot be enforced into qualification. Federal and out-of-state agencies are outside the act.

MONEY. The demand letter costs nothing. The district court civil filing fee for the action was not established by any record this packet is built from - ask the office of the district court where you file. A fee waiver is available in principle under Neb. Rev. Stat. Sec. 25-2301.01, through that same office.

WHEN TO STOP.

- You cannot identify the agency that still shows the record.
- The record is on a private website rather than with a government agency.
- The case never qualified under Sec. 29-3523(3).
- The agency contests and appears through counsel.
- You need representation for any reason. This is exactly what the recommendation above is for.

Route: obligation:track-only:NE:ne-seal-enforcement